

COLLECTIONS OF INFORMATION PROCEDURES

1. REASON FOR ISSUE: This handbook revises the Department of Veterans Affairs (VA) procedures formerly contained in VA Handbook 6310.2, Collections of Information Procedures, dated December 18, 2001.

2. SUMMARY OF CONTENTS/MAJOR CHANGES: This handbook revises procedures and guidelines for activities related to collections of information.

3. RESPONSIBLE OFFICE: Office of the Assistant Secretary for Information and Technology (005), Office of Information Protection & Risk Management (005R), Office of Privacy and Records Management (005R1), Enterprise Records Service (005R1B).

4. RELATED DIRECTIVE: VA Directive 6309, Collections of Information.

5. RESCISSION: This handbook rescinds VA Handbook 6310.2, Collections of Information Procedures dated December 18, 2001.

CERTIFIED BY:

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**BY DIRECTION OF THE SECRETARY
OF VETERANS AFFAIRS:**

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COLLECTIONS OF INFORMATION PROCEDURES

1. PURPOSE.

This handbook provides guidance and outlines procedures for the management of collections of information activities. Instructions for developing a collection of information are included, as is the process for requesting Office of Management and Budget (OMB) review. It also supplements the policies and responsibilities prescribed in VA Directive 6309, Collections of Information. Together, the handbook and the directive provide the necessary information to maintain an effective program.

2. GENERAL.

Within VA, the Chief Information Officer has primary responsibility for implementing and overseeing compliance with the Paperwork Reduction Act (PRA) of 1995, 5 CFR 1320. In order to avoid possible disruptions of ongoing VA programs, the sponsoring organizational element must strengthen its internal measures for developing new collections of information and the extension of existing collections of information. The Director, Enterprise Records Service has program authority for:

a. Certifying that the collection of information is needed; is not unnecessarily duplicative; reduces, to the extent feasible, the burden on respondents; is written in clear and understandable terms; is to be implemented in ways consistent with existing reporting and recordkeeping practices of the respondent; and indicates for each recordkeeping requirement the length of time the information is to be retained.

b. Designating a VA Clearance Officer who will:

(1) Evaluate proposed information collection requests for compliance with the PRA prior to submission to OMB for approval;

(2) Ensure that the public or other affected parties have the opportunity to comment on the proposed information collection; and

(3) Serve as the liaison between VA and OMB on all matters relating to collections of information issues.

3. ITEMS GENERALLY CONSIDERED NOT TO BE INFORMATION

OMB regulation implementing PRA (5 CFR 1320.3(h)) defines nine categories of inquiry which generally are not deemed to constitute "information." These inquiries are considered "routine" and not burdensome to the respondent. Responses to these requests rarely require examination of records, and usually do not require much consideration to provide the correct answer. The nine categories are:

a. Affidavits, oaths, affirmations, certifications, receipts, changes of address, consents, or acknowledgments; provided they entail no burden other than necessary to identify the respondent, the date, the respondent's address, and the nature of the instrument. **(Note:** *A certification would likely involve the collection of information if VA conducts or sponsors it as a substitute to collect evidence of, or to monitor compliance with regulatory standards. Such a certification would generally entail a burden in addition to which is necessary to identify the respondent, date, respondent's address, and the nature of the instrument (see 5 CFR 1320.3(h)(1)).* Consent forms that are completed and signed by individuals also must be cleared through OMB. If the consent form is prepopulated with the required information and the individual only signs and dates the form, OMB clearance is not required.

b. Samples of products or of any other physical objects.

c. Facts or opinions obtained through direct observation by an employee or agent of VA or through non-standardized oral communication in connection with such direct observations.

d. Facts or opinions submitted in response to general solicitations of comments from the public, published in the *Federal Register* or other publications, regardless of the form or format thereof, provided no person is required to supply specific information pertaining to the commenter, other than that necessary for self-identification, as a condition of VA's full consideration of the comment.

e. Facts or opinions obtained initially or in follow-on requests, from individuals (including individuals in control groups) under treatment or clinical examination in connection with research on or prophylaxis to prevent a clinical disorder, direct treatment of that disorder, or the interpretation of biological analyses of body fluids, tissues, or other specimens, or the identification or classification of such specimens. However, OMB may determine that any specific item constitutes "information." Such items must be submitted to Enterprise Records Service for determination.

f. A request for facts or opinions addressed to a single person.

g. Examinations designed to test the aptitude, abilities, or knowledge of the persons tested and the collection of information for identification or classification in connection with such examinations.

h. Facts or opinions obtained or solicited at, or in connection with, public hearings or meetings.

i. Facts or opinions obtained or solicited through non-standardized follow-up questions designed to clarify responses to approved collections of information.

4. COLLECTIONS OF INFORMATION NOT SUBJECT TO PRA

a. OMB review is not required whenever a VA organization wishes to obtain or solicit information from nine or fewer members of the general public or state, local or tribal governments by means of identical questions. However, PRA requires such collections to include a statement indicating the request is not subject to the requirements of PRA.

b. OMB review is also not required for collections of information for:

- (1) Conducting a Federal criminal investigation or prosecution;
- (2) Disposing a particular criminal matter;
- (3) Conducting a civil action to which the United States or any official or agency thereof is a party; or
- (4) Conducting an administrative action or investigation involving an agency against specific individuals or entities.

5. COLLECTIONS OF INFORMATION SUBJECT TO PRA

a. Except for the types of collections discussed in paragraphs 3 and 4, OMB review and approval are required whenever a VA organization wishes to obtain or solicit information from 10 or more persons by means of identical questions. Approval is required, whether such collection of information is mandatory, voluntary, or required to obtain a benefit. This includes a requirement or request for persons to obtain, maintain, retain, report, or publicly disclose information. OMB approval must be requested in advance of the collection.

b. A collection of information includes the use of reports, applications, schedules, questionnaires, surveys, reporting or recordkeeping requirements, and other similar methods. Other methods of collecting information may include contracts, agreements, policy statements, plans, rules or regulations, planning requirements, circulars, directives, instructions, bulletins, requests for proposals or other procurement requirements, interview guides, disclosure requirements, labeling requirements, telegraphic or telephonic requests, and standard questionnaires used to monitor compliance with VA requirements.

c. A VA requirement to obtain or compile information for the purpose of disclosing such information to the public through posting, notification, labeling, or similar disclosure requirements, constitutes a collection of information. The same requirements to obtain or compile information would be a collection of information if the information were provided directly to VA. The public disclosure of information originally supplied by the Federal Government to the recipient (for the purpose of disclosure to the public) is included in this definition.

d. Questions posed to agencies, instrumentalities, or employees of the United States are deemed collections of information if the results are to be used for general statistical purposes.

6. REQUESTING OMB REVIEW UNDER THE PRA

a. VA organizations sponsoring an information collection must plan ahead nine months prior to implementing a new collection of information or six months prior to the expiration of an existing one. **(NOTE: The Office that “develops” and “uses” the information to be collected is the office that “conducts or sponsors” the collection of information (See 5 CFR 1320.3(d)).** The VA component sponsoring the collection must enter a request for clearance through the Regulatory Information Service Center (RISC) and the Office of Information Regulatory Affairs (OIRA) Consolidated Information System (ROCIS). A complete ROCIS request must include a supporting statement (see Appendix A for specific instruction on how to complete a supporting statement), a copy of each information collection instrument, and completion of each of the ROCIS request required data fields (see Appendix B for instruction on completing ROCIS) before an information collection can be submitted to OMB for approval. When developing new collections or determining whether to continue existing ones, the sponsoring VA organization must:

- (1) Evaluate the need for each aspect of the collection of information;
- (2) Estimate the respondent burden associated with the collection of information; and,
- (3) If appropriate, test the collection of information through a pilot program. The pilot program will also need OMB’s approval prior to implementation.

b. The Director, Enterprise Records Service will process a 60-day *Federal Register* notice seeking public comments concerning:

- (1) The need for the information;
- (2) Its practical utility;
- (3) The accuracy of the burden estimates; and
- (4) Ways to minimize burden, including the use of automated collection techniques or other forms of information technology.

c. Written comments or recommendations on the proposed collection of information can be submitted through the Federal Docket Management System (FDMS) at www.regulations.gov or to the sponsoring organization.

d. At the end of the 60-day comment period, the Director, Enterprise Records Service will notify the public, through a 30-day *Federal Register* notice, that the collection of information will be submitted for OMB review. The 30-day notice states that the agency is seeking OMB approval and that anyone wishing to submit written comments on the collection may do so through FDMS or may address comments to OMB, Office of Information and Regulatory Affairs, Attn: VA Desk Officer. The 30-day notice will also request that comments be submitted to OMB within 30 days of the notice's publication.

7. COLLECTIONS OF INFORMATION IN A PROPOSED RULE

The information clearance package for a collection contained in a proposed rule must be submitted to OMB on or before the day on which the Notice of Proposed Rule Making (NPRM) is published in the *Federal Register*. The information clearance package must include a supporting statement and a copy of the proposed regulation and preamble.

a. A proposed regulation containing provisions creating a collection of information is to include in the preamble of the NPRM, a notification that OMB review has been requested. The preamble must advise individuals to direct comments to the Office of Information and Regulatory Affairs, OMB, Attn: VA Desk Officer, and indicate that comments will be most useful if received by OMB within 30 days of the notice's publication. The sponsor must inform respondents of the information as contained in 5 CFR 1320.11. Publication of this information in the NPRM serves as the required public notice. If VA resubmits the collection of information to OMB at the final rulemaking stage, and has complied with the requirements of the PRA at the proposed stage, a second *Federal Register* notice is not required.

b. Request for approval for collections of information contained in proposed or current rules must be entered in ROCIS. If the rule is in the "proposed" phase, the sponsoring organization must attach a copy of the published *Federal Register* NPRM. For current rules, the sponsoring organization must upload a copy of the printed version of the rule in ROCIS. The clearance process for collections of information in proposed or current rules is the same as described in paragraph 6.

c. When all of the required *Federal Register* notices are published, the Director, Enterprise Records Service will certify and submit the information collection request to OMB for review and approval.

8. CERTIFICATION OF NON-DELINQUENCY BY APPLICANTS FOR FEDERAL ASSISTANCE (OMB CIRCULAR A-129)

a. VA application instruments or other collections of information that substantiate the awarding of financial assistance (including grants and contracts) must contain a certification that the applicant is not delinquent on loans or other accounts to the Federal Government. A notice of the penalties for falsification of this information must be included with the certification.

- b. The following language can be used for a delinquency notice:

Are you presently delinquent or in default on any debt to the Federal government (e.g., U.S. Guaranteed Student Loan, GI Bill Education Benefits, home or manufactured home mortgage or improvement loan, Small Business Administration Loan, Public Health Service Loan, bond, loan guarantee)? [] YES [] NO. If "Yes," give details, including date, name and address of lender, case or file numbers, and reasons for action.

9. PERSONAL IDENTIFIERS

a. When the collection of information requests a personal identifier (such as name, address, Social Security number, or other personal information) that will be used as the key to retrieving information about that individual in a file, the collection and maintenance of that information is subject to the provisions of the Privacy Act of 1974. The collection of information must be developed in accordance with VA Handbook 6300.4, Procedures for Processing Requests for Records Subject to the Privacy Act. Other VA confidentiality statutes may also apply.

b. If the information is to be filed by such a personal identifier, and there is no established Privacy Act system of records covering the personal information being collected, a system of records must be established and a copy of the *Federal Register* notice announcing the proposed system of records must be attached to the supporting statement. These limitations concerning the use of a personal identifier as defined above must also be considered when VA imposes a recordkeeping requirement on a person to maintain such individual-specific records or a reporting requirement imposed to provide such information to another person or to VA.

10. PRIVACY ACT CERTIFICATION STATEMENT

a. When appropriate, the supporting statement and collecting instrument must contain a certification that the information will be collected, maintained, used or disseminated in accordance with the provisions of the Privacy Act of 1974. The supporting statement must describe to the respondent any assurance of confidentiality and the basis for the assurance in statute, regulation, or agency policy. The statement must also cite the name and number of any Privacy Act system of records notice(s) covering the information being collected.

- b. Amendments to the Privacy Act system of records notice(s) must be identified.

11. EMERGENCY OR EXPEDITED REQUEST

a. The Director, Enterprise Records Service may request OMB to authorize emergency or expedited processing of submissions of collections of information. For any such request, the Director, Enterprise Records Service and the sponsoring

organization must explain the reason for emergency approval to OMB via a conference call prior to publishing the 60 and 30-day notices in the *Federal Register*.

b. The emergency request must meet the following criteria:

(1) Public harm is reasonably likely to result if normal clearance procedures are followed;

(2) An unanticipated event has occurred; or

(3) The use of normal clearance procedures is reasonably likely to prevent or disrupt the collection of information or is reasonably likely to cause a statutory or court ordered deadline to be missed.

c. The sponsoring organization shall state the time period within which OMB should approve or disapprove the collection of information; and submit information indicating that it has taken all practicable steps to consult with interested agencies and members of the public in order to minimize the burden of the collection of information.

d. The Director, Enterprise Records Service shall set forth in a *Federal Register* notice a statement that an emergency OMB review is being requested, and the time period within which OMB should approve or disapprove the collection of information.

e. Emergency OMB approval may be granted for a period not to exceed six months. Once OMB grants emergency approval, the sponsoring organization must re-submit the information collection request through the normal process for the full three year approval.

12. CUSTOMER SATISFACTION SURVEYS

a. Executive Order 12862, Setting Customer Service Standards, requires Federal Agencies to conduct a series of qualitative and quantitative surveys to determine the kind of services its customers need, as well as customer levels of satisfaction with existing services. These surveys and focus groups must solicit voluntary opinions. They cannot be used to collect information required to obtain or maintain eligibility for a VA program or benefit.

b. Customer satisfaction surveys and focus groups are tools for learning about agency services from the customer's prospective and should be well-defined, low-burden data collections. Traditional program evaluation addresses the objective outcomes of a program, while customer surveys and focus groups emphasize customer perceptions, preferences, and related opinions about an agency's performance. *(Note: OMB approval is not required for one focus group of less than ten individuals. However, if several focus groups of less than ten individuals are being conducted on the same subject matter then OMB approval is required.)*

c. Customer satisfaction information can become a valuable resource for identifying ways to improve the delivery of VA services. It is critical they be designed for maximum efficiency and usefulness. This will help assure surveys are consistent with the PRA, and the terms of clearance defined by OMB.

d. The public docket file at OMB must be updated prior to the survey's actual use and VA's Desk Officer at OMB has agreed to perform a quick turnaround for each submission. That time has been projected to be from one day for the simplest survey and up to two weeks for those that are more complex. It is important that all surveys and focus group scripts used under a generic clearance process are submitted to the Director, Enterprise Records Service prior to distribution. Each submission must include:

(1) A point-of-contact who can best answer questions regarding the content of the submission;

(2) A proposed distribution date;

(3) A brief summary of objectives;

(4) Specific burden estimates; and

(5) A final or near-final version of the survey instrument (focus group script, test questions, etc.).

e. Enterprise Records Service will submit the information collection request to OMB before or after the 30-day notice comment period ending date for approval.

f. OMB has 60 days from the date of the comment period ending date to approve an information collection. If OMB fails to notify the agency of its approval of the information collection within 60 day, the agency may request OMB to assign a control number to be valid for one year. The sponsoring organization of the information collection must submit a request in writing to the Director, Enterprise Records Service for such a request.

13. INFORMATION COLLECTION BUDGET

a. VA program offices must evaluate their information collection activities on an ongoing basis. These evaluations should determine where respondent burden can be decreased (e.g., collecting the information less frequently, consolidating report instruments, or eliminating the collection in its entirety).

b. Each VA organizational element must develop and submit to the Director, Enterprise Records Service in such form, at such time, and in accordance with such procedures as OMB may prescribe, an annual comprehensive budget for all collections of information activities.

SUPPORTING STATEMENT FOR PAPERWORK REDUCTION ACT SUBMISSIONS

1. GENERAL INSTRUCTIONS. A supporting statement, including the text of the notice to the public required by 5 CFR 1320.5(a)(i)(iv) and its actual date of publication in the *Federal Register*, must accompany each request for approval of a collection of information. The supporting statement must be prepared in the format described below, and must contain the information specified in paragraph 2a. If an item is not applicable, provide a brief explanation. Please ensure the documents uploaded in ROCIS do not have tracked changes or hidden data. OMB reserves the right to require the submission of additional information with respect to any request for approval. All documents in ROCIS are subjected to viewing by the public while the information collection request is pending at OMB.

2. SPECIFIC INSTRUCTIONS**a. Justification**

(1) Explain the circumstances that make the collection of information necessary. Identify any legal or administrative requirements that necessitate the collection.

(2) Indicate how, by whom, and for what purpose the information is to be used. Except for a new collection, indicate the actual use the sponsor has made of the information received from the current collection. If applicable, address any "Terms of Clearance" that OMB placed on a previously approved collection in section.

(3) Describe whether, and to what extent, the collection of information involves the use of automated, electronic, mechanical, or other technological collection techniques or other forms of information technology, e.g., permitting electronic submission of responses, and the basis for the decision for adopting this means of collection. Also, describe any consideration of using information technology to reduce burden. If information technology cannot be used to reduce burden, provide explanation as to why it cannot be used.

(4) Describe efforts to identify duplication. Show specifically why any similar information already available cannot be used or modified for use for the purposes described in paragraph 2a(2) above.

(5) If the collection of information impacts small businesses or other small entities describe any methods used to minimize burden.

(6) Describe the consequence to Federal programs or policy activities if the collection is not conducted or is conducted less frequently, as well as any technical or legal obstacles to reducing burden.

(7) Explain any special circumstances that would cause an information collection to be conducted in a manner:

(a) Requiring respondents to report information to the sponsor more often than quarterly;

(b) Requiring respondents to prepare a written response to a collection of information in fewer than 30 days after receipt of it;

(c) Requiring respondents to submit more than an original and two copies of any document;

(d) Requiring respondents to retain records, other than health, medical, government contract, grant-in-aid, or tax records for more than three years;

(e) In connection with a statistical survey that is not designed to produce valid and reliable results that can be generalized to the universe of study;

(f) Requiring the use of a statistical data classification that has not been reviewed and approved by OMB;

(g) That includes a pledge of confidentiality that is not supported by authority established in statute or regulation, that is not supported by disclosure and data security policies that are consistent with the pledge, or which unnecessarily impedes sharing of data with other agencies for compatible confidential use; or

(h) Requiring respondents to submit proprietary trade secrets, or other confidential information unless the sponsor can demonstrate that it has instituted procedures to protect the information's confidentiality to the extent permitted by law.

(8) Identify the date and page number of the published 60-day *Federal Register* notice as required by 5 CFR 1320.8 (d), soliciting comments on the information collection prior to submission to OMB. Summarize public comments received in response to that notice and describe actions taken by the sponsor in response to these comments. Specifically address comments received on cost and hour burden.

(a) Describe efforts to consult with persons outside VA to obtain their views on the availability of data, frequency of collection, the clarity of instructions and recordkeeping, disclosure, or reporting format (if any), and on the data elements to be recorded, disclosed, or reported; and

(b) If applicable, consultation with representatives of those from whom information is to be obtained or those who must compile records should occur at least once every three years even if the collection of information activity is the same as in prior periods. There may be circumstances that may preclude consultation in a specific situation. These circumstances should be explained.

(9) Explain any decision to provide any payment or gift to respondents, other than remuneration of contractors or grantees.

(10) Describe any assurance of confidentiality provided to respondents and the basis for the assurance in statute, regulation, or agency policy.

(11) Provide additional justification for any questions of a sensitive nature, such as sexual behavior and attitudes, religious beliefs, and other matters that are commonly considered private. This justification must include the reasons why the agency considers the questions necessary, the specific uses to be made of the information, the explanation to be given to persons from whom the information is requested, and any steps to be taken to obtain their consent.

(12) Provide estimates of the hour burden of the collection of information. The statement should:

(a) Indicate the number of respondents, frequency of response, annual hour burden, and an explanation of how the burden was estimated. Unless directed to do so, VA cannot conduct special surveys to obtain information on which to base hour burden estimates. Consultation with a sample (fewer than 10) of potential respondents is desirable. If the hour burden on respondents is expected to vary widely because of differences in activity, size, or complexity, show the range of estimated hour burden, and explain the reasons for the variance. Generally, estimates should not include burden hours for customary and usual business practices;

(b) If this request for approval covers more than one form, provide separate hour burden estimates for each form and aggregate the hour burdens; and

(c) Provide estimates of annualized cost to respondents for the hour burdens for collections of information, identifying and using appropriate wage rate categories. The cost of contracting out or paying outside parties for information collection activities should not be included here. Instead, this cost should be included in Item 15.

(13) Provide an estimate of the total annual cost burden to respondents or record-keepers resulting from the collection of information. (Do not include the cost of any hour burden already reflected on the burden worksheet).

(a) The cost estimate should be split into two components:

1. A total capital and start-up cost component (annualized over its expected useful life);

2. A total operation and maintenance and purchase of services component. The estimates should take into account costs associated with generating, maintaining, and disclosing or providing the information. Include descriptions of methods used to

APPENDIX A

estimate major cost factors including system and technology acquisition, expected useful life of capital equipment, the discount rate(s), and the time period over which costs will be incurred. Capital and start-up costs include, among other items, preparations for collecting information such as purchasing computers and software; monitoring, sampling, drilling and testing equipment; and record storage facilities;

(b) If cost estimates are expected to vary widely, VA must present ranges of cost burdens and explain the reasons for the variance. The cost of purchasing or contracting out information collection services should be a part of this cost burden estimate. In developing cost burden estimates, VA may consult with a sample of respondents (fewer than 10), utilize the 60-day pre-OMB submission public comment process and use existing economic or regulatory impact analysis associated with the rulemaking containing the information collection, as appropriate; and

(c) Generally, estimates should not include purchases of equipment or services, or portions thereof, made:

1. Prior to October 1, 1995;
2. To achieve regulatory compliance with requirements not associated with the information collection;
3. For reasons other than to provide information or keep records for the government; or
4. As part of customary and usual business or private practices.

(14) Provide estimates of annualized cost to the Federal government. Also, provide a description of the method used to estimate cost, which should include quantification of hours, operational expenses (such as equipment, overhead, printing, and support staff), and any other expense that would not have been incurred without this collection of information. Cost estimates from Items 12, 13, and 14 may be aggregated in a single table.

(15) Explain the reasons for any program changes or adjustments reported on the burden worksheet.

(16) For collections of information whose results will be published, outline plans for tabulation and publication. Address any complex analytical techniques that will be used. Provide the time schedule for the entire project, including beginning and ending dates of the collection of information, completion of report, publication dates, and other actions.

(17) If seeking approval to omit the expiration date for OMB approval of the collecting instrument, explain the reasons that display would be inappropriate.

(18) Explain each exception to the certification statement identified in Item 19, "Certification for Paperwork Reduction Act," of OMB Form 83-I.

b. **Collections of Information Employing Statistical Methods.** The sponsor should be prepared to justify its decision not to use statistical methods in any case where such methods might reduce burden or improve accuracy of results. The following documentation must be included in supporting statement B:

(1) Describe (including a numerical estimate) the potential respondent universe and any sampling or other respondent selection method to be used. Data on the number of entities (e.g., establishments, State and local government units, households, or persons) in the universe covered by the collection and in the corresponding sample are to be provided in tabular form for the universe as a whole and for each of the strata in the proposed sample. Indicate expected response rates for the collection as a whole. If the collection had been conducted previously, include the actual response rate achieved during the last collection.

(2) Describe the procedures for the collection of information including:

(a) Statistical methodology for stratification and sample selection;

(b) Estimation procedure;

(c) Degree of accuracy needed for the purpose described in the justification;

(d) Unusual problems requiring specialized sampling procedures; and

(e) Any use of periodic (less frequent than annual) data collection cycles to reduce burden.

(3) Describe methods to maximize response rates and to deal with issues of non-response. The accuracy and reliability of information collected must be shown to be adequate for intended uses. For collections based on sampling, a special justification must be provided for any collection that will not yield "reliable" data that can be generalized to the universe studied.

(4) Describe any tests of procedures or methods to be undertaken. Testing is encouraged as an effective means of refining collections of information to minimize burden and improve utility. Tests must be approved if they call for answers to identical questions from 10 or more respondents. A proposed test or set of tests may be submitted for approval separately or in combination with the main collection of information.

(5) Provide the name and telephone number of individuals consulted on statistical aspects of the design and the name of VA unit, contractor(s), grantee(s), or other person(s) who will actually collect and/or analyze the information for the agency.

The Office of Information and Regulatory Affairs has a number of documents that may serve as useful reference material for completing supporting statement B. The documents are located at http://www.whitehouse.gov/omb/infoereg_statpolicy/.

INSTRUCTIONS FOR COMPLETING ROCIS (FORMERLY OMB 83-I)

(NOTE: Answer all questions, spell check, and check for completeness on both screens. The instructions below should be used in conjunction with 5 CFR 1320, which provides information on coverage, definitions, and other matters of procedure and interpretation under the Paperwork Reduction Act of 1995). The following data fields must be completed in ROCIS. Incomplete information collection requests will not be processed until all of the required data fields are completed, supporting statement(s), and collecting instrument(s) are in ROCIS.

1. OMB CONTROL NUMBER/AGENCY INFORMATION COLLECTION REQUEST (ICR) TRACKING NUMBER. If the information collection has previously received or now has an OMB control or comment number, enter the number, otherwise leave blank.

2. TITLE. Provide the official title of the information collection. If an official title does not exist, provide a description that will distinguish this collection from others.

3. TYPE OF INFORMATION COLLECTION. (CHECK ONE)

a. Check **“New Collection”** when the collection has not previously been used or sponsored.

b. Check **“Revision”** when the collection is currently approved by OMB, and the request includes a material change to the collection instrument, instructions, its frequency of collection, or the use to which the information is to be put. Provide the reason for the revision in paragraph 2 of supporting statement A. ROCIS automatically defaults to “revision.” If the collection is not a revision, change to “extension.”

c. Check **“Extension”** when the collection is currently approved by OMB, and the sponsor wishes only to extend the approval past the current expiration date without making any material change in the collection instrument, instructions, frequency of collection, or the use to which the information is to be put.

d. Check **“Reinstatement without change”** when the collection previously had OMB approval, but the approval has expired or was withdrawn before this submission was made, and there is **no change** to the collection.

e. Check **“Reinstatement with change”** when the collection previously had OMB approval, but the approval has expired or was withdrawn before this submission was made, and **there is** change to the collection.

f. Check **“Existing collection in use without OMB control number”** when the collection is currently in use but does not have a currently valid OMB control number. *(NOTE: You must provide an explanation in paragraph 2 of the supporting statement as to why the collection is in use without an OMB number).*

g. Select “**Nonmaterial/Nonsubstantive Change**” for minor changes to an information collection. Use only when an existing information collection has minor changes, such editorial changes to the collecting instrument. Do not request a nonmaterial/nonsubstantive change if there is a change to the program or burden hour. Program and burden hour changes must be submitted as a revision.

4. TYPE OF REVIEW REQUESTED. (CHECK ONE)

a. Check “**Regular**” when the collection is submitted under 5 CFR 1320.10, 1320.11, or 1320.12 with a standard 60-day review schedule.

b. Check “**Emergency**” when the agency is submitting the request under 5 CFR 1320.13 for emergency processing and provides the required supporting material. Provide the date by which the sponsor requests approval. (**NOTE:** *The sponsor must prepare a written determination to explain why an exception is needed. The determination must include a description of the “unanticipated event has occurred” or “a court ordered deadline to be missed.” (See Section 1320.13 (2, ii & (iii)), Emergency processing. The Director, Enterprise Records Service and the sponsor will confer with OMB via a conference to determine whether the collection of information can be cleared under the emergency process).*

c. Check “**Delegated**” when the agency is submitting the collection under the delegated authority conditions OMB has granted the agency.

5. REQUESTED EXPIRATION DATE.

a. Determine which expiration date option to choose:

(1) Check “**Three years**” if the sponsor requests a three-year approval for the difference.

(2) Check “**Other**” if the sponsor requests approval for less than three years. Specify the month and year of the requested expiration date.

b. OMB approval for new collections, revisions, extensions, reinstatements, and existing collections of information in use without a currently valid OMB control number may not exceed three years.

6. DOES THE ICR CONTAIN SURVEYS, CENSUSES, OR EMPLOY STATISTICAL METHODS? Check “Yes” if the information collection uses statistical method and provide supporting statement B under Management Document. (See Appendix A(b) Collections of Information Employing Statistical Methods for instructions).

7. DOES THE SUPPORTING STATEMENT SERVE AS A JOINT ICR AND PRIVACY IMPACT ASSESSMENT (PIA)? If “Yes” provide a statement in supporting statement A. When the agency undertakes new electronic information collections, the agency may conduct, submit, and make it publicly available, as part of the supporting statement (the request to OMB to approve a new agency information collection). (See M-03-22 for further instructions.)

8. IS THIS ICR RELATED TO THE AFFORDABLE CARE ACT (PPACA, P.L. 111-148 and 111-152)? Check “Yes” or “No”

9. IS THE ICR RELATED TO THE AMERICAN RECOVERY AND REINVESTMENT ACT OF 2009? Check “Yes” or “No”

10. AGENCY CONTACT. Enter the Agency’s Clearance Officer Name.

11. ABSTRACT. Provide a detailed statement, covering the agency’s need for the information, uses to which it will be put and a brief description of the respondents.

12. AUTHORIZING STATUTES. Enter all statutes, Executive Orders, and laws that govern the collected information.

13. ASSOCIATED RULEMAKING INFORMATION. Select either “Proposed Rule, Interim Final or Final Rule, Not Associated with a rulemaking or Other Documents for OIRA Review” as appropriate. Provide the RIN number, the *Federal Register* citation and date for ICRs review at the proposed rule stage. OMB considers an ICR incomplete if the Notice of Proposed Rulemaking (NPRM) has not been published. If the NPRM is not published, check the appropriate stage of rulemaking and upload the draft rule in the Manage ICR Documents. Be sure to indicate the document type as ‘proposed rule’ or ‘final rule’.

14. FEDERAL REGISTER NOTICES AND COMMENTS. Provide the 60 and 30-day notices *Federal Register* citation and date. Check the appropriate box to indicate whether any public comments were received during the 60-day comment period. If checked “Yes” summarize and describe actions taken in number eight of supporting statement A and upload the comments and response in ROCIS under Manage ICR Documents.

15. ANNUAL COST TO FEDERAL GOVERNMENT. See Item 14 of supporting statement A. Do not use commas or a dollar sign.

16. CITATIONS FOR NEW STATUTORY REQUIREMENTS. Enter all statutes, Executive Orders, and laws that required, if any, new or change in burden that governs the collection of information.

17. BURDEN INCREASES OR DECREASES DUE TO AGENCY DISCRETION. Check either change in regulation or miscellaneous.

18. SHORT STATEMENT. Provide a reason for any program changes or adjustments reported on how the reduction in burden was achieved or why the increase in burden occurred.

19. AFFECTED PUBLIC. Mark all categories that apply. Mark “Federal Government” only when the collection requires using statistical methods.

20. OBLIGATION TO RESPOND.

a. Check “**Voluntary**” when the response is entirely discretionary and has no direct effect on any benefit or privilege for the respondent.

b. Check “**Required to Obtain or Retain Benefits**” when the response is elective, but is required to obtain or retain a benefit.

c. Check “**Mandatory**” when the respondent must reply or face civil or criminal sanctions.

21. CODE OF FEDERAL REGULATION (CFR) CITATION: Enter the appropriate CFR citation if an information collection does not have a form or survey but is required by statute or regulation.

22. INFORMATION COLLECTION INSTRUMENTS.

a. An instrument is described as paper or electronic form, a survey, web-based application, a telephone script, or any other means used to collect the information. Select “Yes” or “No” if the electronic form’s URL and information about the electronic form instrument is to be shared with E-Gov initiative, Business Gateway forms Catalog, and E-Forms. When asked “is this a Common Form or send to E-Form?” Select “No.”

b. The sponsoring VA organization must inform respondents of the following:

- (1) Reasons the information is being collected;
- (2) Way information is to be used;
- (3) Estimated burden;
- (4) Explanation of whether responses are voluntary, required to obtain a benefit, or mandatory;
- (5) Nature and extent of confidentiality (This only applies where personal identifiers are being used. In this case, a system of record must be identified); and

(6) A statement that VA may not conduct or sponsor a collection of information unless it displays a valid OMB control number. The respondent is not required to respond to a collection of information unless it displays a valid control number.

c. Depending on the nature of the collection of information, the above information can be provided in the collection instrument in the respondent burden statement, its instructions, near the title of the electronic collection instrument, or for on-line applications, on the first screen viewed by the respondent, or the preamble of the regulation containing the collection of information.

23. ANNUAL REPORTING AND RECORDKEEPING HOUR BURDEN.

a. Enter the number of respondents and/or record-keepers. If a respondent is also a record-keeper, report the respondent only once.

b. Enter the number of responses provided annually. For recordkeeping as compared to reporting activity, the number of responses equals the number of record-keepers.

(1) Enter the estimated percentage of responses that will be submitted/collected electronically using magnetic media (i.e., diskette), electronic mail, or electronic data interaction.

(2) Facsimile is not considered an electronic submission.

c. Enter the total annual recordkeeping and reporting hour burden.

(1) **“Program change”** is the result of deliberate Federal Government action. All new collections and any subsequent revision of existing collections (e.g., the addition or deletion of questions) are recorded as program changes.

(2) **“Adjustment”** is a change that is not the result of a deliberate Federal government action. Changes resulting from new estimates or actions not controllable by the Federal Government are recorded as adjustments.

d. ROCIS automatically calculate the reporting hours. Use the following formulas to indicate the reporting hours in the supporting statement A. Multiply the number of respondents by the number of minutes it takes to complete the information requested, and divide by 60 = reporting hours ($200 \times 5/60 = 16.67$ or 17 hours). To aggregate the overall total for multiple respondents and reporting hours in ROCIS, divide the reporting hours by the number of respondents ($17/200=0.085000$). This figure is entered under “This ICR Requests Change in Net Burden”. Enter the aggregated total and complete the IC Burden Work Sheet to record the burden hour. ROCIS automatically records new figures under program change. If the burden hour for existing ICR is an adjustment, move the figures under adjustment.

24. ANNUAL REPORTING AND RECORDKEEPING COST BURDEN (IN THOUSANDS OF DOLLARS). The costs identified in this item must exclude the cost of hour burden identified in Item 13 of the supporting statement A.

- a. Enter total dollar amount of annualized cost for all respondents of any associated capital or start-up costs.
- b. Enter recurring annual dollar amount of cost for all respondents associated with operating or maintaining systems or purchasing services.
- c. Enter total annual reporting and recordkeeping cost burden.
- d. Enter any cost burden currently approved by OMB for this collection of information. Do not provide a cost if this is the first submission after October 1, 1995.

25. FREQUENCY OF RECORDKEEPING OR REPORTING.

- a. Check ***“Recordkeeping”*** if the collection of information explicitly includes a recordkeeping requirement.
- b. Check ***“Third party disclosure”*** if a collection of information includes third-party disclosure requirements as defined by 5 CFR 1320.3 (c).
- c. Check ***“Reporting”*** for information collections that involve reporting and check the frequency of reporting that is requested or required of a respondent. If the reporting is on *“an event basis,”* check *“On occasion.”*

26. LINE OF BUSINESS/SUBFUNCTION – Chose a line of business/subfunction from the category in the dropdown box.

27. CERTIFICATION FOR PAPERWORK REDUCTION ACT SUBMISSION. The Director, Enterprise Records Service or designee will certify that the collection of information encompassed by the request complies with 5 CFR 1320.9. Provisions of this certification that the agency cannot comply with should be identified and fully explained in Item 18 of the supporting statement A.